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S.T. v. Los Angeles Unified School District

Tuesday,

July 21, 2026

[TENTATIVE]

ORDER DENYING MOTION TO QUASH THE DEPOSITION SUBPOENA ISSUED BY PLAINTIFF, OR
IN THE ALTERNATIVE, FOR A PROTECTIVE ORDER (3958)

I.

BACKGROUND

The

complaint alleges that Plaintiff was a 14-year-old student at Ernest Lawrence Middle School, which allegedly has a history of racism. Plaintiff alleges they were the victim of an unprovoked and brutal hate crime at the hands of a white parent and student, Defendant John Paul Morreale, while at school for which Morreale was arrested on January 6, 2025. (Complaint, Ex. A.) Plaintiff alleges nine causes of action arising from this and other racially-charged incidents.

Defendant

Moreale requests an order to quash a deposition subpoena issued by Plaintiff and served on Revive Wellness Counseling Center ("Revive") for the production of therapy notes, billing and other records relating to psychological counseling therapy services provided by Revive to Moreale concerning or stemming from the alleged incident and its emotional and psychological impact on Moreale. Defendant contends the subpoena seeks confidential information protected by the

constitutional right of privacy and violates the psychotherapist/ physician patient privilege including concerns arising from related criminal proceedings stemming from the same incident.

On

May 28, 2026, the Court granted in part, Morreale's motion to stay the proceedings. The Court did not find that a complete stay of all civil proceedings was warranted. The Court stayed discovery only to the extent it would require Defendant Morreale to provide testimonial communications concerning the facts and circumstances underlying the pending criminal prosecution, including deposition testimony, interrogatory responses, and responses to requests for admission concerning the December 6, 2024, incident. (M.O. 5/28/26.)

II.

LEGAL STANDARDS

The court can quash a subpoena to protect a party from unreasonable or oppressive demands including unreasonable violations of the right of privacy. The court has discretion to modify the subpoena or direct compliance upon terms or conditions as the court declares, including issuing protective orders. (Code Civ. Proc., § 1987.1.)

The party claiming a privacy interest bears the burden of proof on the issue." (Williams v. Superior Court (2017) 3 Cal.5th 531, 531. ["The party asserting a privacy right must establish a legally protected privacy interest, an objectively reasonable expectation of privacy in the given circumstances, and a threatened intrusion that is serious."].)

The

constitutional right to privacy precludes compelled disclosure of medical records pertaining to topics not placed in issue by filing the complaint. (White v. Davis (1975) 13 Cal.3d 757, 761.) Discovery of a party's confidential medical history is limited to the specific injury at issue. (Britt v. Superior Court (1978) 20 Cal.3d 844, 864 ["The patient thus is not obligated to sacrifice all privacy to seek redress for a specific mental or emotional injury; the scope of the inquiry permitted depends upon the nature of the injuries which the patient-litigant himself has brought before the court."])

Additionally,
the psychotherapist-patient privilege affords a patient the privilege "to refuse to disclose, and to prevent another from disclosing, a confidential communication between patient and psychotherapist." (Evid. Code, § 1014.)

Where
privacy rights are implicated, the requesting party must show that the records sought are directly relevant to Plaintiff's claims and are essential to the fair resolution of the lawsuit. (Davis v. Superior Court (1992) 7 Cal.App.4th 1008, 1014). The burden falls on the party asserting privacy to establish the extent and seriousness of the prospective invasion. (Williams v. Superior Court (2017) 3 Cal.5th 531, 557).

Against
that showing, the Court must weigh the countervailing interests the opposing party identifies. (Id.). The Court considers the purpose of the information sought, the effect that disclosure will have on the affected persons and parties, the nature of the objections urged by the party resisting disclosure, and whether there are less intrusive means for obtaining the requested information. (SCC Acquisitions, Inc. v. Superior Court (2015) 243 Cal.App.4th 741, 755).

III.

DISCUSSION

A.

Defendant tendered the issue of
his mental condition.

Defendant
argues that his mental or emotional condition was not "tendered." (Reply 3:2-3.) Defendant relies on People v. Yang (2021) 67 Cal.App.5th 1, 49 which states that a "patient loses the protection of the psychotherapist-patient privilege only if they are first to 'tender' the issue in litigation. In that regard, the court looks to see which party was first to raise the issue." Defendant also cites In re Lifschutz (1970) 2 Cal.3d 415 which states that compelling disclosure despite the psychotherapist-patient privilege is limited to "those matters directly relevant to the nature of the specific 'emotional or mental; condition which the patient has voluntarily disclosed and tendered in his pleadings or in answer to discovery inquiries." to (In re Lifschutz (1970)

2 Cal.3d 415, 431.)

Form

Interrogatory 2.12, propounded by Plaintiff on defendant states:

“At the time of the INCIDENT did you or any other person have any physical, emotional, or mental disability or condition that may have contributed to the occurrence of the INCIDENT? If so, for each person state:

(a) the name, ADDRESS, and telephone number;

(b) the nature of the disability or condition; and

(c) the manner in which the disability or condition contributed to the occurrence of the INCIDENT.” (Gage Decl., Ex. 2, 8:15-21 [italics added].)

Defendant responded by identifying professionals he has seen with respect to a service-connected disability, including post-traumatic stress disorder. (Id. 9:17-28.)

Additionally, Defendant asserted that his actions were reasonable in light of the circumstances and that he had legitimate reasons for his for his actions. (Id. Ex. 3, Answer, 18th and 22nd Aff. Defs.)

While Defendant correctly observes that his answer does not specifically raise the “defense of insanity, unconsciousness, diminished or mental incapacity, emotional injury, or PTSD-as-excuse”, Defendant’s discovery responses connect his mental condition to the potential cause of the incident.

As Defendant voluntarily tendered that his pre-existing condition contributed to the incident, the subpoena seeks documents directly relevant to Defendant’s defense.

B. The subpoena is narrowly drawn.

The subpoena was issued on the witness identified by Defendant in response to Interrogatory 12.1, namely Revive

Wellness Center. (Quadros decl., Ex. B.) The scope of records sought are limited to those records stemming from the “incident” described as the incident at issue in this litigation. (Id. Att. 3.) The documents to be produced are described as:

“1. Therapy notes, progress reports, diagnosis records, prognosis records, patient information sheets, and test results relating to psychological counseling/therapy services provided by Revive Wellness Counseling Center to JOHN PAUL MORREALE concerning or stemming from the INCIDENT and its emotional and psychological impact on JOHN PAUL MORREALE.

2. Billing records, including itemized billing statements with diagnostic codes, for

psychological counseling/therapy services provided by Revive Wellness Counseling Center to JOHN PAUL MORREALE concerning or stemming from the INCIDENT and its emotional and psychological impact on JOHN PAUL MORREALE (“Defendant”). (Id. [emphasis added].)

Defendant contends that therapy notes, diagnoses, prognoses, test results, and patient-information sheets are not directly relevant. (Reply, 8:4) However, Plaintiff does not seek an “unlimited” disclosure as Plaintiff seeks only those records that concern the incident, and its emotional and psychological impact on Defendant.

Defendant’s Reply argues that the 5th Amendment, while not raised specifically in the moving papers, precludes the disclosure of records that are testimonial in nature as they impact the pending criminal proceeding arising from the same incident. Plaintiff argues the 5th Amendment Privilege applies “only when the accused is compelled to make a Testimonial Communication that is incriminating.” (Fisher v. U.S. (1976) 425 U.S. 391, 408.) Plaintiff argues that documents in the hands of mental health professionals who have treated or tested defendant and to whom a patient voluntarily gave information without compulsion is not “testimonial.” (Opp. 7:23-26.)

Plaintiff’s position has merit. Here,

Defendant is not personally compelled to give information. In *People v. Superior Court (Broderick)* (1991) 231 Cal.App.3d 584, 591, the court observed that “[t]he United States Supreme Court has long held the federal self-incrimination privilege does not prevent the production of incriminating documents in the hands of third parties”, finding that the “ingredient of personal compulsion [is] missing.” (Id. [“The Ninth Circuit has held the Fifth Amendment does not prevent a doctor or a hospital from being required to produce psychiatric records of a target of a grand jury investigation in response to a subpoena. ... After first determining no federal psychotherapist-patient privilege existed, the court found the records to be voluntarily kept business records and beyond the scope of the Fifth Amendment privilege. ... The court concluded that ‘[w]here statements are given freely and voluntarily without any compelling influences, the fifth amendment privilege does not apply.’” (*People v. Superior Court (Broderick)* (1991) 231 Cal.App.3d 584, 591–592.)

Defendant’s reply brief does not address the application of the 5th amendment privilege specifically where records in the hands of a treating physician are sought. The Reply argues that the privilege applies because Plaintiff “candidly states that it seeks these records to prove Defendant’s ‘mental state, intent, and motivation at the time of the incident’ for the assault, battery, Bane Act, Ralph Act, and intentional-infliction claims, and to prove malice ... for purposes of punitive damages” and that these are the same issues for which Defendant is being prosecuted. (Reply, 9:9-15.)

There is no dispute that there are overlapping factual issues between the civil and criminal proceedings, however, the salient issue is whether a physician can be compelled to produce treating records containing information given by the patient/defendant, where the information is freely and voluntarily given to the physician. As noted in the foregoing authority, Defendant’s personal compulsion is not at issue.

IV.

CONCLUSION

Based on the foregoing, Defendant’s motion to quash is DENIED.